

SmartCare Multispeciality Hospital — Patient Rights & Responsibilities Policy

Document ID: SC-DOC-003
Document Name: SmartCare Hospital Patient Rights & Responsibilities Policy
Version: 1.0
Status: Active
Owner: Hospital Ethics & Patient Advocacy Committee
Effective Date: 01 September 2026
Last Updated: 01 September 2026
Review Frequency: Every 6 months
Target Audience: Patients, Families, Attendants, Clinical Staff, Legal & Compliance Officers, and AI Assistant

1. Purpose & Scope

1.1 Purpose

SmartCare Multispeciality Hospital is committed to delivering healthcare founded on mutual trust, dignity, ethical transparency, and patient empowerment. This charter delineates the fundamental rights guaranteed to every patient seeking care at SmartCare, alongside the reciprocal responsibilities required of patients and caregivers to foster a safe, therapeutic, and respectful healing environment.

1.2 Scope

This charter applies universally to all individuals receiving medical care at SmartCare Hospital, including outpatient clinics, emergency services, day-care surgical units, inpatient rooms, intensive care units, and diagnostic suites.

2. Patient Rights Charter

Every patient receiving care at SmartCare Multispeciality Hospital is entitled to the following twelve fundamental rights:

2.1 Right to Respectful and Humane Care

- The right to receive considerate, compassionate, and dignified medical care at all times, free from discrimination based on race, ethnicity, religion, nationality, caste, gender, sexual orientation, disability, socioeconomic status, or personal beliefs.
- The right to have personal values, cultural traditions, and spiritual beliefs respected during clinical management.

2.2 Right to Complete and Understandable Clinical Information

- The right to receive clear, accurate, and understandable information regarding their diagnosis, proposed treatments, potential benefits, known clinical risks, alternative medical options, and long-term prognosis from the treating consultant in a language they comprehend.
- The right to know the names, qualifications, professional designations, and primary clinical roles of all physicians, surgeons, nurses, and allied healthcare professionals responsible for their direct care.

2.3 Right to Privacy and Physical Dignity

- The right to personal and visual privacy during medical examinations, nursing consultations, physical therapy sessions, and diagnostic procedures.
- The right to request an appropriate clinical chaperone (such as a female nurse during pelvic or breast examinations) during physical evaluations.

2.4 Right to Confidentiality of Medical Records

- The right to strict confidentiality of all health records, personal identity data, diagnostic findings, prescriptions, and financial information.
- No personal or clinical information shall be disclosed to outside individuals, commercial agencies, or employers without explicit, written patient authorization, except where mandated by statutory law or public health authorities.

2.5 Right to Informed Consent & Shared Decision Making

- The right to give informed, voluntary written consent prior to any non-trivial diagnostic procedure, administration of anesthesia, blood transfusion, chemotherapy, or surgical operation.
- The right to receive an objective explanation of the procedure's purpose, risks, expected recovery course, and consequences of withholding consent.
- The right to refuse proposed medical treatment or withdraw consent at any stage, while being fully informed by the medical team of the clinical consequences of such refusal.

2.6 Right to a Second Medical Opinion

- The right to seek a second clinical opinion from another qualified medical specialist inside or outside SmartCare Hospital without fear of compromise in ongoing care or clinical bias.
- The right to receive copies of all diagnostic reports, medical summaries, and imaging studies to facilitate such external consultations.

2.7 Right to Access Medical Records

- The right to inspect and obtain copies of official medical records, including diagnostic reports, discharge summaries, operation notes, and medication charts, in accordance with hospital release protocols within standard statutory timeframes.

2.8 Right to Financial Transparency & Estimated Costs

- The right to receive an itemized, clear, and comprehensive estimate of anticipated medical, surgical, room, and diagnostic charges prior to planned admission or major procedures.
- The right to receive clear, itemized daily billing updates during inpatient stays and a complete explanation of the final billing statement upon discharge.

2.9 Right to Safe & Clean Healthcare Environment

- The right to receive treatment in a clean, sanitized, safe, and secure hospital environment compliant with rigorous hospital infection-control and fire-safety standards.
- The right to be protected from physical harm, neglect, verbal abuse, and unnecessary clinical restraint.

2.10 Right to Language Assistance & Communication Support

- The right to reasonable language interpretation support (Telugu, Hindi, Urdu, English, Marathi, Kannada) and assistive communication for individuals with hearing or speech impairments where available.

2.11 Right to Immediate Emergency Medical Evaluation

- The right to immediate emergency clinical stabilization and triage 24 hours a day, 7 days a week, regardless of insurance status, deposit payment, or socioeconomic background.

2.12 Right to Voice Grievances Without Retaliation

- The right to voice complaints, submit formal grievances, or suggest improvements regarding clinical care, staff conduct, or billing without fear of discrimination, retaliation, or compromise in treatment.

3. Patient Responsibilities Charter

Optimal healthcare outcomes depend upon proactive partnership and open collaboration between patients and the medical care team. Patients and their attendants are responsible for:

1. Providing Accurate and Complete Medical Information:

- Disclosing complete, truthful medical history, including pre-existing illnesses, past surgeries, current prescription drugs, over-the-counter medications, dietary supplements, and known drug/food allergies.
- Promptly informing doctors and nurses of any unexpected physical changes, allergic symptoms, or worsening discomfort.

2. Adhering to Prescribed Treatment Plans:

- Complying with mutually agreed clinical instructions, medication dosages, dietary restrictions, post-operative precautions, and rehabilitation exercises.
- Promptly asking questions when clinical instructions are not fully understood.

3. Respecting Hospital Rules & Decorum:

- Abiding by hospital visiting hours, visitor headcount limits (maximum 1–2 attendants per patient), and noise-control guidelines.
- Refraining from smoking, consuming alcohol, possessing prohibited substances, or bringing outside cooked food into sterile inpatient units.

4. Treating Healthcare Staff with Courtesy and Respect:

- Interacting with physicians, nursing staff, technicians, billing executives, and support workers with mutual respect and civility.
- **Zero Tolerance Policy:** Verbal harassment, abusive language, physical intimidation, or violence toward hospital staff will result in immediate security intervention and legal prosecution under applicable medical protection statutes.

5. Protecting Personal Belongings:

- Safeguarding personal valuables, cash, jewelry, and mobile electronics. The hospital is not liable for loss or theft of unattended personal property.

6. Fulfilling Financial Commitments:

- Ensuring timely settlement of outpatient consultation fees, diagnostic charges, pharmacy invoices, admission deposits, and co-payment portions of inpatient bills.

7. Maintaining Infection-Control Protocols:

- Adhering to mandatory hand sanitization, wearing masks in designated high-risk clinical zones (such as ICUs or oncology suites), and respecting patient isolation barriers.

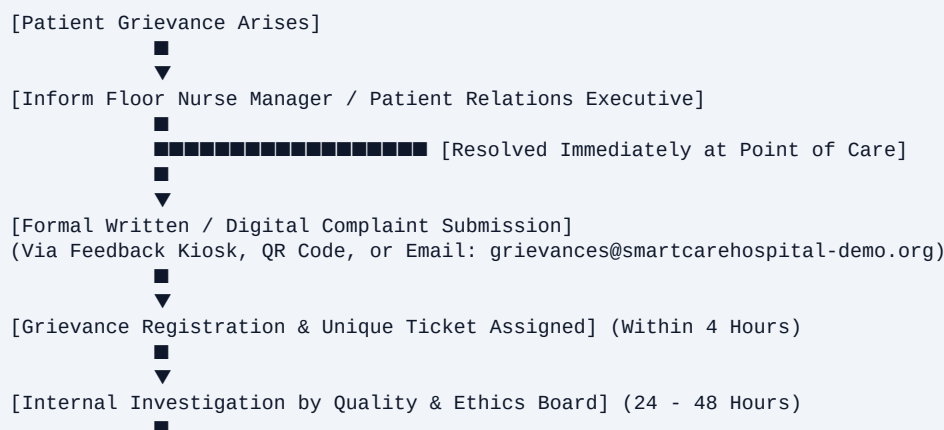
4. Privacy, Confidentiality & Data Protection Rules

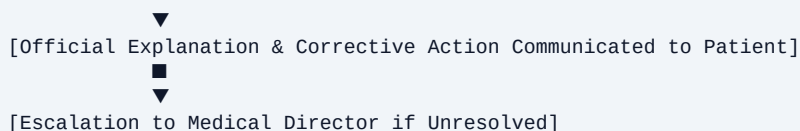
SmartCare Multispeciality Hospital maintains strict compliance with national healthcare data privacy standards:

- **Restricted Access:** Electronic Medical Records (EMR) are accessible exclusively to authorized clinical personnel directly involved in the patient's immediate diagnosis and treatment.
- **Third-Party Disclosures:** Medical details will never be shared with insurance companies, employers, legal representatives, or family members without the patient's explicit, signed **Consent for Release of Medical Information Form**.
- **Statutory Exceptions:** Disclosure without patient consent is permitted strictly when mandated by court subpoena, statutory communicable disease reporting regulations, or medical-legal requirements under Indian law.

5. Patient Grievance & Complaint Redressal Process

If a patient or attendant feels their rights have been infringed, or if they experience dissatisfaction with services, they may initiate the following redressal procedure:





6. RAG Knowledge Search & Question Triggers

- **Trigger Queries:** "What are my rights as a patient?", "Can I see another doctor for a second opinion?", "Who can see my medical records?", "Can I refuse a surgical procedure?", "How do I complain about poor treatment or rude staff?", "What are the rules for hospital visitors?", "Can the hospital share my reports without my permission?"
- **Standardized Fact Base:** Patients have the right to dignified care, complete information, privacy, second opinion, and informed consent. Patients must provide accurate health histories, follow hospital rules, treat staff with respect, and settle bills on time.

7. Frequently Asked Questions (FAQs)

Q1: Do I have the right to know what medicine is being given to me during my stay?

A: Yes. You have the absolute right to know the name, purpose, dosage, and potential side effects of any medication administered to you by the nursing staff.

Q2: Can I refuse a recommended surgery or medical test?

A: Yes. Competent adult patients have the legal and ethical right to refuse any procedure or treatment. The doctor will explain the medical risks of refusal, and you will be asked to sign an "Against Medical Advice" (AMA) or refusal documentation.

Q3: Can I get a second medical opinion from a doctor outside SmartCare?

A: Yes. You are completely entitled to seek an external second opinion. SmartCare will provide copies of your clinical notes, lab reports, and imaging files to facilitate this.

Q4: Will my employer or insurance company be able to view my medical records without my consent?

A: No. SmartCare will never release your health records to employers, insurers, or third parties without your explicit, written consent, unless required by statutory court order.

Q5: Can I request a female doctor or female nurse for physical examinations?

A: Yes. Female patients may request a female chaperone or female physician for intimate physical, gynecological, or breast examinations.

Q6: What should I do if a staff member speaks to me rudely?

A: You should immediately report the incident to the Floor Patient Relations Executive or submit a formal complaint via our feedback kiosks or by emailing grievances@smartcarehospital-demo.org.

Q7: Can family members make medical decisions on my behalf?

A: If you are conscious and competent, only you can make decisions regarding your care. If you are incapacitated, an authorized legal guardian or designated next-of-kin may make clinical decisions in your best medical interest.

Q8: What is an informed consent form and why must I sign it?

A: An informed consent form certifies that your doctor has explained the procedure, benefits, known risks, and alternatives, and that you voluntarily agree to proceed.

Q9: Do I have the right to know how much my treatment will cost before surgery?

A: Yes. SmartCare provides a written estimate of surgical and hospitalization expenses prior to all planned admissions and elective operations.

Q10: What are my responsibilities regarding hospital visiting hours?

A: Patients and attendants must strictly adhere to visiting hours (4:30 PM – 7:00 PM in wards; 11:00 AM – 11:30 AM & 5:00 PM – 5:30 PM in ICUs) and maintain low noise levels to allow healing.

Q11: Can I bring outside home-cooked food for an admitted patient?

A: Outside food is strictly prohibited in ICUs and post-operative units to prevent infection. In general wards, outside food is allowed only with written clearance from the treating physician or clinical dietician.

Q12: Can hospital staff detain me if I cannot pay my bill immediately?

A: No. SmartCare strictly adheres to ethical and legal guidelines. Patients are never unlawfully detained due to billing delays; administrative settlement plans are arranged through the Medical Social Work Department.

Q13: Can I take photographs or record videos of doctors or staff during consultations?

A: No. Photography, audio recording, and video recording of doctors, nurses, staff, or other patients without explicit written permission is strictly prohibited to protect institutional privacy.

Q14: How does SmartCare protect my digital medical information?

A: Our Electronic Medical Records system uses role-based access controls, encrypted databases, and audit trails compliant with national data privacy standards.

Q15: What happens if a patient acts aggressively toward hospital staff?

A: SmartCare maintains a zero-tolerance policy for physical or verbal violence. Security personnel will intervene immediately, and legal action may be filed under medical protection laws.

Q16: Can I request copies of my X-rays, CT scans, and MRI films?

A: Yes. You can request digital copies on CD/DVD or secure cloud download links from the Radiology Department on Basement Level 1.

Q17: Is language translation available if I do not speak English or Telugu?

A: Yes. The Patient Relations Desk provides support in Hindi, Urdu, Marathi, Kannada, and international languages upon prior request.

Q18: What is my responsibility regarding past medical history?

A: It is your responsibility to fully disclose all existing medical conditions, past surgeries, chronic illnesses, and current prescription drugs to prevent adverse drug interactions.

Q19: Can I ask the doctor to change my room category during an inpatient stay?

A: Yes. Subject to bed availability and medical clearance, you may request an upgrade or downgrade in room category through the Inpatient Admission Desk.

Q20: How do I submit an anonymous feedback or complaint?

A: Anonymous feedback boxes are located near the elevators on every floor, or you can submit feedback through the online portal without entering contact details.

8. Official Contact Directory

- **Patient Relations & Grievance Cell:** Ground Floor, Atrium Wing B
- **Direct Phone:** +91-40-6999-5566 (Mon–Sat, 8:00 AM – 8:00 PM)
- **Email:** grievances@smartcarehospital-demo.org / patientadvocate@smartcarehospital-demo.org
- **Hospital Ethics Committee Secretariat:** Level 4 Administrative Suite, Ext. 4012